

8. ANDRIDGE v. NUNES, ET AL., 24CV0887**Defendants' Motion for Sanctions and Request for OSC Re: Contempt**

On February 20, 2026, defendants Michael Nunes and Mikayla Saffold (collectively, "defendants") filed a joint motion requesting: (1) a \$1,000 monetary sanction under Code of Civil Procedure sections 2023.010 and 2023.030; and (2) an Order to Show Cause why plaintiff Scott Andridge ("plaintiff") should not be held in contempt for willful failure to comply with this court's December 19, 2025, discovery order.

On December 19, 2025, the court granted defendants' motion to compel plaintiff's response to defendants' Special Interrogatories (Set One). The court ordered plaintiff to serve a code-compliant response to defendants by January 9, 2026. Although the court's order did not expressly state it, pursuant to Code of Civil Procedure section 2030.290,¹² plaintiff waived his right to object to any of the interrogatories due to his failure to serve a timely response to the original discovery request. (Code Civ. Proc., § 2030.290, subd. (a)(1).)

On or about January 7, 2026, plaintiff served a verified response to defendants' Special Interrogatories (Set One). (Nunes Decl., Ex. 3.) Plaintiff objected to each interrogatory but also provided a substantive response to each and every interrogatory subject to his objections. As previously mentioned, plaintiff previously waived his right to object.

Defendants' contention is that plaintiff's January 7, 2026, response is insufficient. That claim, however, would require a separate motion to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a).

¹² Code of Civil Procedure section 2030.290, subdivision (a)(1) provides in pertinent part: "If a party to whom interrogatories are directed fails to serve a timely response, ... [¶] [that party] waives any ... objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)." (Code Civ. Proc., § 2030.290, subd. (a)(1).)

The court finds that plaintiff complied with the court's December 19, 2025, order by serving a verified response before January 9, 2026. Therefore, the instant motion is denied.

TENTATIVE RULING # 8: DEFENDANTS' MOTION FOR A MONETARY SANCTION AND ORDER TO SHOW CAUSE IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.